



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00096 / 2600 Missile Drive Annexation (84 Lumber Company Site)
Date: May 9, 2022

Background:

The item for consideration is an *Annexation*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/9/2022
- Public Services Committee 5/17/2022
- Second reading 5/23/2022
- Public Services Committee 6/7/2022
- Third and final reading 6/13/2022

Related Items:

- 2600 Missile Drive (84 Lumber Company Site) Zone Change (UDC-22-00101)

Attachments:

1. Ordinance
2. Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, LAND LOCATED NORTH OF MISSILE DRIVE, EAST OF I-25.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

(a) That Capital Development, LLC, owners of:

a portion of Lot 1, Block 1, 84 Lumber Company Site, Laramie County, Wyoming, more particularly described as follows:

beginning at the Northwest corner of the Original City of Cheyenne, thence S26°18'30"E, along the West line of the Original City of Cheyenne, a distance of 569.48 feet to the North line of that parcel recorded In Book 2474, Page 1144, thence S62°26'54"W, along said North Line, a distance of 117.76 feet to the West line of Lot 1; thence N23°40'06"W, along the West line, a distance of 372.32 to the Westerly corner of Lot 1; thence N0°22'38"E, a distance of 223.97 feet to the point of beginning. Containing 1.16 acres more or less.

have petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and

- (b) That an accurate annexation map of said land is attached to this ordinance as Exhibit A, said map prepared by Jeffrey B. Jones, a Professional Land Surveyor, licensed in the State of Wyoming, PLS Number 5910; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can, within reason, be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned LI Light Industrial by the Laramie County Commissioners; and

- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 2. That all of the real property described in Exhibit A is hereby annexed to the City of Cheyenne, Wyoming, and shall become a part thereof.

Section 3. That the City Clerk is directed to file an executed copy of this annexation ordinance and map (Exhibit A) with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to add said area to the official City Map of the City of Cheyenne, Wyoming.

Section 4. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 5. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

KRISTINA F. JONES, CITY CLERK

published: _____

NW COR. LOT 4
SEC. 36

SOUTH LINE GOVERNMENT LOT 3
NORTH LINE GOVERNMENT LOT 4 SECTION 36

BNRR RIGHT OF WAY

LEGEND

- FOUND $\frac{3}{8}$ " X 24" LONG REBAR WITH $\frac{1}{2}$ " ALUMINUM CAP
STAMPED "SSS PLS 2500"
- FOUND STONE NW CORNER ORIGINAL CITY OF CHEYENNE
- ⊙ FOUND $\frac{3}{8}$ " REBAR
- (P) DENOTES PLAT DATA
- ▨ AREA TO BE ANNEXED
- ▤ CITY LIMITS

POB
NW CORNER OF
ORIGINAL CITY

N=71792.39'
E=590585.35'

WEST LINE SECTION 36
ORIGINAL U.S. RAILROAD RELOCATION BOUNDARY

INTERSTATE 25 SERVICE ROAD

LOT 1
BLOCK 1

84 LUMBER
COMPANY SITE

LEWIS AND LEWIS, LLC
62474, P1144 PORTION LOT 1

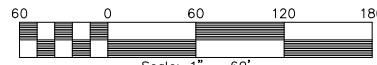
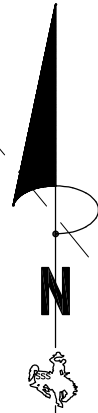
COBETTO SUBDIVISION
LOT 1, BLOCK ONE

CITY CONTROL MONUMENT
"NOB HILL"
N. 63965.11'
E. 588218.48'

CITY CONTROL MONUMENT
"BRIDGE"
N. 66742.14'
E. 500448.91'

ANNEXATION DESCRIPTION

A parcel being a portion of Lot 1, Block 1, 84 Lumber Company Site, situate in the South Half of Section 36, T.14N., R.67W. of the 6th P.M., Laramie County, Wyoming, being more particularly described as follows: Beginning at the Northwest corner of the Original City of Cheyenne, thence S26°18'30"E, along the West line of the Original City of Cheyenne, a distance of 569.48 feet to the North line of that parcel recorded in Book 2474, Page 1144, thence S62°26'54"W, along said North Line, a distance of 117.76 feet to the West line of Lot 1; thence N23°40'06"W, along the West line, a distance of 372.32 feet to the Westerly corner of Lot 1; thence N0°22'38"E, a distance of 223.97 feet to the point of beginning. Containing 1.16 acres more or less.



CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

ANNEXATION MAP FOR A PORTION OF LOT 1, BLOCK ONE, 84 LUMBER COMPANY SITE

APPROVALS

Approved by the City Council of the City of Cheyenne, Wyoming,
this _____ day of _____, 2022.

ATTEST: _____
Mayor City Clerk

ANNEXATION AREA

TOTAL AREA: 1.16 ACRES
ABUTTING ANNEXATION AND RATIO TO TOTAL
PERIMETER = 54%

REVISED: 3/14/2022
22130 ANNEX.DWG

LOT 1, BLOCK ONE
84 LUMBER COMPANY SITE,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED MARCH 2022

VICINITY MAP



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1108 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 694-7373
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 822-9789
www.SteilSurvey.com • info@SteilSurvey.com



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CITY OF CHEYENNE GOVERNING BODY

MAY 9, 2022

STAFF REPORT

FILE: UDC-22-00096: Annexation of 2600 Missile Drive (84 Lumber Company Site)

REQUEST: An annexation of 1.2 acres of land

LOCATION: North of Missile Drive east of I-25

APPLICANT: Capital Development, LLC (Dan Montgomery)

AGENT: Steil Surveying Services, LLC – Shane Hansen

OWNER: Capital Development, LLC

PURPOSE: To put the entire ownership parcel in one jurisdiction

PREPARED BY: Seth Lloyd, Planner II – Development



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.4.2 Annexations
- PlanCheyenne

BACKGROUND:

The applicant is requesting annexing of 1.2 acres of land to place the entire property under one jurisdiction. Currently, the property is divided between City and County jurisdiction. Despite this, the County Assessor presently shows both the City and County areas as one combined parcel. The land is currently developed in both jurisdictions with an industrial use. The user of the property desired to expand the business by placing a new building. A zone change is proposed concurrently with this annexation. Both applications are anticipated to come to final consideration before the Governing Body at the same meeting.

Land annexed to the City requires a City zone. The petition to annex has been accompanied by a submission to change the zoning from County LI Light Industrial to the City LI Light Industrial zone.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Industrial	County LI Light Industrial	Industrial
North	Industrial, Mixed-use Employment	LI Light Industrial	Industrial, Rail Yard
South	Industrial, Mixed-use Commercial	County LI, LI	Mobile Home Park, Vacant
East	Industrial	LI	Rail Yard
West	Public-Federal	County Exempt, SS Support Services	WYDOT, Military Base

The property is currently zoned LI Light Industrial in the County. The property is concurrently proposed to be annexed and rezoned to the City LI Light Industrial zone. The City LI zone is intended for environmentally controlled manufacturing or intensive employment uses that may have accessory commercial, service or office uses, but which cannot readily fit into other general business or mixed-use areas due to the nature or intensity of operations.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

To accept the petition to annex and approve the annexation Ordinance, the Governing Body must make the following findings required in WS 15-1-402; a detailed analysis of which is below:

- 1) An annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town. [WS 15-1-402 (a) (i)]**

The annexation of this property will increase the health, safety, and welfare of the occupants. By being in City limits, the property will receive access to City Fire and Police and sanitation

services. The property, if occupied, will also be required to be connected to City sanitary sewer instead of having septic systems.

The application **complies** with this review criterion.

2) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town. [WS 15-1-402 (a) (ii)]

This property, once developed, will constitute a natural, geographic, economic, and social part of the city. The property is largely surrounded by the City (the non-annexed area adjacent is mostly WYDOT right-of-way). The contiguity, the fact the ownership parcel is already partially in the City, and the proximity to surrounding urban-style development makes the parcel a natural geographic part of the City. The development of this property will benefit those who live within the City and will be a part of the social and economic fabric that is Cheyenne.

The application **complies** with this review criterion.

3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed. [WS 15-1-402 (a) (iii)]

The area is a logical and feasible addition to the City due to the reasons previously listed. All City services normally available to residents will also be made available. Police and fire protection will be extended upon annexation. Utilities already exist in the area.

The application **complies** with this review criterion.

4) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. 15-1-407. [WS 15-1-402 (a) (iv)]

The area proposed for annexation is about 54% contiguous, along the eastern edge.

The application **complies** with this review criterion.

5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. [WS 15-1-402 (a) (v)]

Utility franchises are in place to serve the annexed area.

The application **complies** with this review criterion.

- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. 15-1-405(a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. 15-1-405(a). [WS 15-1-402 (a) (vi)]

A certified mailing was made to the landowners and public utilities on April 7, 2022. The public hearing for this annexation is scheduled for May 9, 2022. Twenty (20) business days prior to the announced public hearing is April 11, 2022. The earliest confirmation of delivery was dated April 8, 2022.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Policies within PlanCheyenne encourage the maximization of existing infrastructure and the reduction of County pockets. This property is near existing urban infrastructure, and the annexation would effectively reduce a County pocket.

The Future Land Use Map of PlanCheyenne, as updated by Connect 2045, anticipates this area of the community to develop with industrial uses. These areas are expected to develop with full access to urban services – such areas are best served by being within City limits.

STAFF REVIEW:

Through the review process, the following comments were received:

- Location of Water and Sewer mains.

CONCLUSION:

Staff is satisfied that the application meets the review criteria and therefore recommends approval of the annexation.

The proposed annexation is a natural extension of the City, is contiguous to the current City limits, and most services typically available to urban areas are available to this property.

STAFF RECOMMENDATION:

Staff recommends approval of the annexation of the property.

ATTACHMENTS:

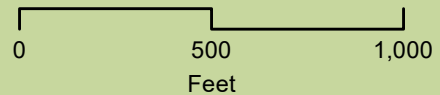
1. Aerial, Current City Limits, and Future Land Use Map
2. Submitted Application
3. Applicant-submitted annexation map

84 Lumber Site Annexation

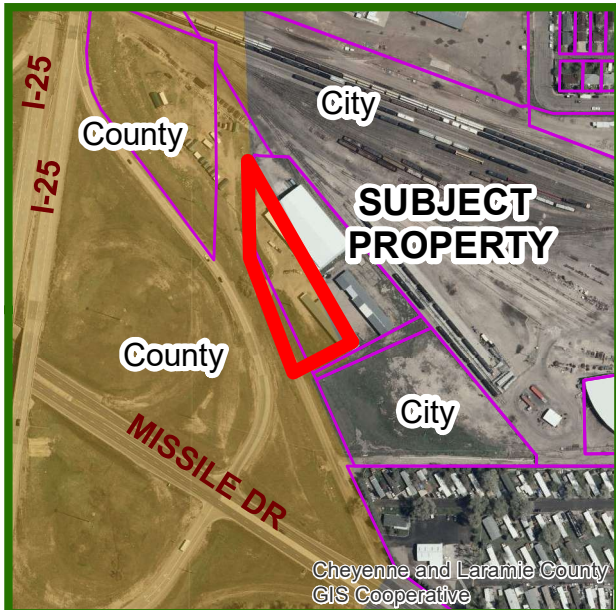


Application Number
Annexation
UDC-22-00096

Attachment 1

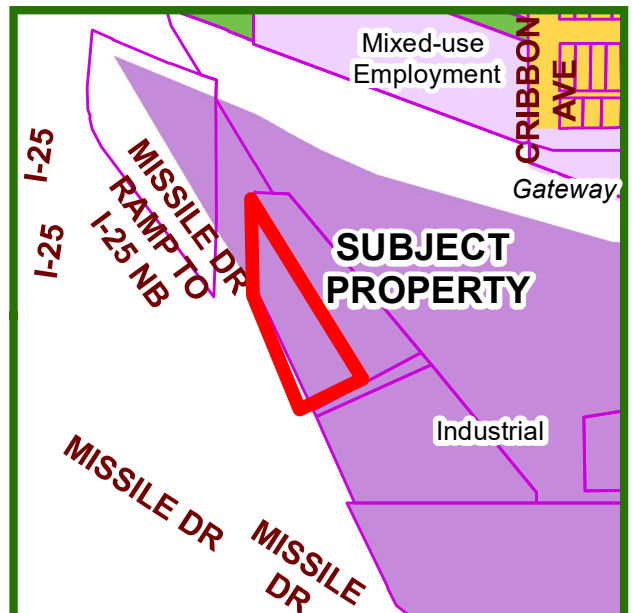


Current City Limits



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



NW COR. LOT 4
SEC. 36

SOUTH LINE GOVERNMENT LOT 3
NORTH LINE GOVERNMENT LOT 4 SECTION 36

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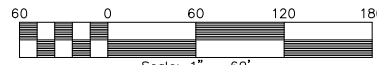
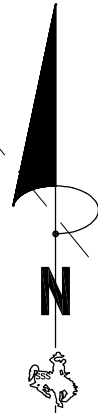
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ANNEXATION MAP FOR A PORTION OF LOT 1, BLOCK ONE, 84 LUMBER COMPANY SITE

APPROVALS

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this _____ day of _____, 2022.

ATTEST: _____
Mayor City Clerk

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ABUTTING ANNEXATION AND RATIO TO TOTAL
PERIMETER = 54%

REVISED: 3/14/2022
22130 ANNEX.DWG

LOT 1, BLOCK ONE
84 LUMBER COMPANY SITE,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING
PREPARED MARCH 2022

VICINITY MAP



Planning and Development: Annexation Application

Submission date: **16 March 2022, 12:54PM**
Receipt number: **16**
Related form version: **10**

General Information

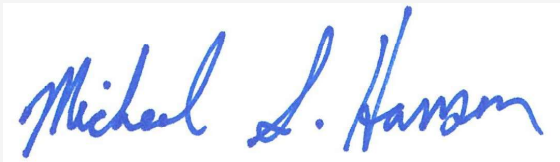
Applicant Name:	CAPITAL DEVELOPMENT LLC
Applicant Address:	3903 CHEYENNE STREET, STE D
Applicant City:	CHEYENNE
Applicant State:	WY
Applicant Zip Code:	82001
Applicant Phone:	307-316-2814
Applicant Email	westerndrywall@gmail.com
Representative Name:	SHANE HANSEN - STEIL SURVEYING SERVICES
Representative Address:	1102 W. 19TH ST
Representative City	CHEYENNE
Representative State:	WY
Representative Zip Code:	82001
Representative Phone:	307-634-7273
Representative Email:	shansen@steilsurvey.com
Owner Name:	CAPITAL DEVELOPMENT LLC
Owner Address:	3903 CHEYENNE STREET, STE D
Owner City:	CHEYENNE

Owner State:	WY
Owner Zip Code:	82001
Owner Phone:	307-632-5417
Owner Email:	westerndrywall@gmail.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	LOA.pdf
Project Location (Street Address or General Location):	2600 MISSILE DRIVE
Assessor's Parcel ID number(s)	14673640800900
Total Project Area	1.216 ACRES
Current Zoning	LI
Proposed Zoning	LI - Light Industrial

Application-Specific Information

For platted lots, provide legal description. If unplatted, type "unplatted."	LOT 1, BLOCK ONE, 84 LUMBER COMPANY SITE
Formal Annexation Petition	PETITION FOR ANNEXATION.pdf
Board of Public Utilities Clearance Form	BOPU CLEARANCE FORM.pdf
Annexation Map	22130 ANNEX PAPER (1).pdf

Signature / Certification

Applicant Signature	Name of signatory: Shane Hansen  Uploaded signature image: HANSEN SIGNATURE.jpg
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Please enter an email address for an email receipt.

shansen@steilsurvey.com



PETITION FOR ANNEXATION

TO: **THE HONORABLE MAYOR, PATRICK COLLINS,**

**AND MEMBERS OF THE CITY COUNCIL OF THE CITY OF
CHEYENNE, WYOMING:**

KNOW ALL THAT CAPITAL DEVELOPMENT LLC (DAN MONTGOMERY),
Owner name(s)

The undersigned owners, hereby petition to annex to the City of Cheyenne,
Wyoming, the following described property:

Legal description of requested annexation (attach additional sheet if necessary):

A parcel being a portion of Lot 1, Block 1, 84 Lumber Company Site, situate in the South Half of Section 36, T.14N., R.67W. of the 6th P.M., Laramie County, Wyoming, being more particularly described as follows: Beginning at the Northwest corner of the Original City of Cheyenne, thence S26°18'30"E, along the West line of the Original City of Cheyenne, a distance of 569.48 feet to the North line of that parcel recorded in Book 2474, Page 1144, thence S62°26'54"W, along said North Line, a distance of 117.76 feet to the West line of Lot 1; thence N23°40'06"W, along the West line, a distance of 372.32 to the Westerly corner of Lot 1; thence N0°22'38"E, a distance of 223.97 feet to the point of beginning. Containing 1.16 acres more or less.

The undersigned petitioners hereby respectfully request that said property and adjacent streets be annexed to the City of Cheyenne, and be made a part thereof.

By submitting the petition for annexation, the undersigned agree to abide with all applicable provisions and City ordinances, rules, and regulations involving annexation.



Planning and Development Department – ANNEXATION PETITION

Attach additional sheet if necessary.

Signature		Printed Name	Dan Montgomery	Date	3/14/22
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Signature		Printed Name		Date	
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Note: According to Wyoming State Statute § 15-1-403(b), no signature is valid if it is dated more than 180 days prior to the date of filing. No person signing a petition for annexation may withdraw his/her signature from the petition after it has been filed with the City Clerk.

Attest:
